



RESIDENTIAL

BUYER REPRESENTATION AGREEMENT - EXCLUSIVE

1 **1. PARTIES:** This Buyer Representation Agreement (this "Representation Agreement") is by and between (insert name[s]) Kraig Tapang
 2 _____ ("Buyer")
 3 and (insert firm name) Northwest Realty Source ("Firm"),
 4 by and through its real estate agent (insert name) Troy D. Doty P.C. ("Buyer's Agent"),
 5 whose Oregon real estate license number is 200104205. Buyer's Agent is supervised by (identify Buyer's Agents authorized principal
 6 broker): Troy D D Doty PC (Buyer's Agent's Authorized Principal Broker"),
 7 who can be contacted at (insert phone number): (503)997-4169. As used below in this Representation Agreement, the term "Buyer's
 8 Agent" will refer collectively to the Buyer's Agent, Firm, Buyer's Agent's Authorized Principal Broker, and any of Firm's other real estate agents
 9 assisting Buyer's Agent in the representation of Buyer in the purchase of real property. Buyer appoints Buyer's Agent as Buyer's real estate agent to
 10 assist Buyer in locating, negotiating, and closing the purchase, lease, option to purchase, or exchange of residential real property (an "Acquisition")
 11 generally described below (the "Services").

12 **2. EXCLUSIVITY:** Buyer's Agent will be Buyer's exclusive agent (select one) ☐ throughout the State of Oregon ☒ in the following area(s) (list cities
 13 or counties or both): Washington County
 14 _____ (the "Exclusive Area"), during the term described in Section 4.

15 (a) **Inside the Exclusive Area.** Buyer will work only with Buyer's Agent to accomplish the purposes described in Section 1 Buyer will not
 16 engage or employ any other real estate firm or person to perform services during the term in the Exclusive Area. Buyer represents and warrants
 17 to Buyer's Agent that Buyer is not a party to any representation agreement with any other real estate agent or firm for property within the
 18 Exclusive Area.

19 (b) **Outside the Exclusive Area.** Buyer may engage or employ other real estate firms or persons to perform services during the term after
 20 giving Buyer's Agent written notice stating the other agent's name, firm name, and exclusive area. If Buyer's Agent is asked to do so by Buyer,
 21 Buyer's Agent may represent Buyer outside the Exclusive Area on a nonexclusive basis, but will not be Buyer's exclusive agent outside the
 22 Exclusive Area unless the parties expand the Exclusive Area by amending this Representation Agreement in writing. If Buyer is a party to one
 23 or more representation agreements for property in area(s) outside the Exclusive Area, describe the area(s):
 24 _____
 25 _____

26 At this time, Buyer is interested in acquiring the following type(s) of property in the Exclusive Area: (select all that apply)

27 ☒ Residential ☐ Rental/Income ☐ Vacant Land ☐ Other type (specify) _____

28 Price Range: (describe) \$600,000 to \$700,000

29 Other Criteria: (describe) _____

30 The criteria identified above indicate the Buyer's initial interest and have no bearing on whether Firm is entitled to compensation under Section 5.

31 **3. REPRESENTATION OF SELLERS AND OTHER BUYERS:** Buyer acknowledges Buyer has received and read the Oregon Real Estate Agency's
 32 Initial Agency Disclosure Pamphlet, which describes Buyer's Agent's legal obligations. Buyer understands Buyer's Agent might represent other
 33 potential buyers who may desire to purchase, option, exchange, or lease the same or similar properties as Buyer is seeking. Buyer and Buyer's Agent
 34 will enter into a Disclosed Limited Agency Agreement if Buyer allows Buyer's Agent, or any other real estate agent in Buyer's Agent's Firm, to represent
 35 any other person in a transaction that includes Buyer.

36 **4. TERM:** This Representation Agreement will be effective when all parties have signed and delivered this Representation Agreement and will expire
 37 at 5:00 p.m. on (insert date) August 31, 2026 (the "Term"). If Buyer enters into an Acquisition agreement during the Term, the Term will
 38 be automatically extended to include any period during which the Acquisition agreement is in effect. The Term, including any automatic extensions,
 39 will not exceed twenty-four (24) months.

40 **5. COMPENSATION:** COMPENSATION FOR REAL ESTATE AGENTS IS NOT SET BY LAW: THERE IS NO STANDARD OR MINIMUM LEVEL OF
 41 COMPENSATION FOR REAL ESTATE AGENTS. BUYER IS FREE TO NEGOTIATE THE TERMS OF COMPENSATION WITH BUYER'S AGENT.

42 Buyer's Agent's services are not free, and Buyer's Agent will show properties to Buyer regardless of the amount of compensation offered to Buyer's
 43 Agent by a seller or seller's agent. Buyer will pay Firm as follows: (select all that apply)

Buyer Initials KT / _____ / _____ / _____

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44 (a) ☒ **Fee.** Buyer will pay Firm a fee of (*select and complete one*) ☐ \$ _____ or ☒ **2.500** % of the purchase, lease, or option price
 45 ("Fee") if, during the Term, or during any extension of the Term, or within _____ calendar days (sixty [60] if not filled in) after its expiration or
 46 termination, Buyer enters into an Acquisition agreement due to the efforts of Buyer's Agent.

47 **Buyer(s) Initials** (*required if option [a] is selected*) _____ / _____ / _____ / _____

48 If Buyer enters into a representation agreement during the period following expiration or termination of this Representation Agreement
 49 described in the previous sentence and pays compensation under the terms of that agreement, Buyer will not be obligated to pay the Fee
 50 under this Representation Agreement.

51 Buyer authorizes Buyer's Agent to negotiate compensation paid by sellers, sellers' agents, or both, and authorizes Firm to receive that
 52 compensation. If a seller, lessor, or optionor agrees to pay compensation to the Firm, that compensation will be credited against the Fee. If
 53 that compensation is less than the Fee, Buyer will pay the difference to the Firm. That compensation is not allowed to be greater than the Fee.

54 Buyer consents to the Firm being compensated by more than one party in a transaction involving Buyer if the Firm's compensation is being
 55 paid or offset by the seller or seller's agent.

56 Buyer will pay the Fee to the Firm at closing and authorizes Firm to divide the Fee with other Firm agents at Firm's discretion.

57 If Buyer enters into an Acquisition agreement during the Term due to the efforts of Buyer's Agent but fails to complete the transaction in
 58 accordance with the material terms of the transaction agreement, Buyer will pay \$ _____ (zero dollars [\$0] if not filled in) to Firm
 59 as liquidated damages. The parties agree that the exact amount of Buyer's Agent's damages in that situation would be uncertain and difficult
 60 to accurately estimate, and the amount indicated in the previous sentence is fair compensation for and a reasonable measure of those
 61 damages in the light of the anticipated or actual harm caused by the breach, the difficulties of proof of loss, and the inconvenience or non-
 62 feasibility of otherwise obtaining an adequate remedy.

63 **Buyer(s) Initials** (*required if option [a] is selected*) _____ / _____ / _____ / _____

64 (b) ☐ **Nonrefundable Fee.** Buyer will pay a nonrefundable fee of \$ _____ (zero dollars [\$0] if not filled in) to the Firm upon signing
 65 and delivering this Representation Agreement. This fee (*select one*) ☐ will ☐ will not be credited against any compensation to which the
 66 Firm will become entitled under this Representation Agreement.

67 **Buyer(s) Initials** (*required if option [b] is selected*) _____ / _____ / _____ / _____

68 **6. EARLY TERMINATION:** This Representation Agreement will not be terminated before the end of the Term if Buyer enters into an Acquisition
 69 agreement due to the efforts of Buyer's Agent that has not yet terminated or closed. If Buyer is not a party to an Acquisition agreement:

70 (a) Buyer's Agent may terminate this Representation Agreement early by giving Buyer written notice;

71 (b) Buyer may terminate this Representation Agreement early by giving Buyer's Agent written notice and paying Firm an early termination fee
 72 of \$ _____ (zero dollars [\$0] if not filled in); and

73 **Buyer(s) Initials** (*required if an amount is entered*) _____ / _____ / _____ / _____

74 (c) termination of this Representation Agreement will be effective as of the date the written notice of termination is delivered. The obligation to
 75 pay any fee selected in Section 6(b) will survive termination of this Representation Agreement.

76 **7. BUYER'S AGENT'S OBLIGATIONS:** Buyer's Agent will:

77 (a) deal honestly and in good faith;

78 (b) present all written offers, notices, and other communications to and from the parties in a timely manner without regard to whether the
 79 property is subject to a contract for sale or Buyer is already a party to a contract to purchase;

80 (c) disclose material facts known by Buyer's Agent and not apparent or readily ascertainable;

81 (d) exercise reasonable care and diligence;

82 (e) account in a timely manner for money and property received from or on behalf of the Buyer;

Buyer Initials ^{DB} / / /

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BUYER REPRESENTATION AGREEMENT - EXCLUSIVE

- 83 (f) be loyal to Buyer by not taking action that is adverse or detrimental to Buyer's interest in a transaction;
- 84 (g) disclose in a timely manner to Buyer any conflict of interest, existing or contemplated;
- 85 (h) advise Buyer to seek expert advice on matters related to the transaction that are beyond Buyer's Agents expertise;
- 86 (i) maintain confidential information from or about Buyer except under subpoena or court order, even after termination of the agency
- 87 relationship; and
- 88 (j) unless agreed otherwise in writing, make a continuous, good faith effort to find a property for Buyer, except that Buyer's Agent is not required
- 89 to seek additional properties for Buyer while the Buyer is subject to a contract for purchase or show properties for which there is no written
- 90 agreement to pay compensation to Buyer's Agent.

91 Nothing in this section implies a duty to investigate matters that are outside the scope of Buyer's Agent's expertise, including but not limited to the

92 investigation of the condition of property, the legal status of the title, or an owner's past conformance with law, unless the Buyer's Agent agrees in

93 writing to investigate a matter.

94 **8. BUYER'S OTHER OBLIGATIONS:** Buyer will cooperate with Buyer's Agent by:

- 95 (a) contacting Buyer's Agent before visiting any property, especially any first visit;
- 96 (b) furnishing all personal and financial information necessary for Buyer's Agent to perform the Services; and indemnifying and holding Buyer's
- 97 Agent harmless from all claims resulting from incomplete or inaccurate information provided by Buyer;
- 98 (c) performing appropriate due diligence, including inspections, of the property to be acquired and its surroundings, that Buyer deems material;
- 99 (d) if Buyer requires financing for this transaction, refraining from taking any action that could result in Buyer's failure to obtain the financing,
- 100 such as making any purchases that would damage Buyer's credit score or resigning from employment; and
- 101 (e) participating in all negotiations and complying with any agreement entered into, in good faith.

102 **9. DISCLOSURES AND ACKNOWLEDGMENTS:** Buyer's Agent discloses to Buyer, and Buyer understands and agrees to, the following:

103 (a) **Hiring Experts.** Buyer's Agent is qualified to advise on matters concerning the purchase and sale of real estate, but is not an expert in law,

104 tax, finance, surveys, structural conditions, hazardous materials, land use, title, environmental risks, engineering, and other aspects of the due

105 diligence process. Buyer's Agent does not investigate the status of permits, zoning, location of property lines, code compliance, or square

106 footage. Those inspections and investigations are important, and Buyer should hire experts to conduct them, and should consider making any

107 purchase contingent on Buyer's satisfaction with them. Although Buyer's Agent may provide names or sources for such advice or assistance,

108 Buyer's Agent does not warrant the services of such providers or their products, or the condition of property to be acquired, nor does Buyer's

109 Agent guarantee all defects will be disclosed by the seller.

110 (b) **Confidentiality.** Although Buyer's Agent will not disclose Buyer's confidential information (such as transaction terms, financial

111 qualifications, or motivation to buy or sell) except as required under Oregon law, Sellers or their representatives may not treat the existence,

112 terms, or conditions of Buyer's offer(s) as confidential, and may freely disclose those matters unless confidentiality is specifically agreed upon

113 in a written agreement.

114 (c) **How Compensation is Paid.** This Representation Agreement is an important part of ensuring that buyer expectations are met regarding

115 when and how much compensation buyers pay. Compensation is paid by buyers and sellers to real estate firms, and those firms pay a portion

116 of that compensation to their real estate agents. A seller's agent's firm may pay compensation to a buyer's agent's firm, which means that the

117 seller's agent's firm may share a portion of the compensation the seller's agent's firm receives from the seller with the buyer's agent's firm.

118 Buyers can ask sellers to pay compensation to buyer's agent's firm. If a buyer obtains financing for a transaction from Veterans Affairs (a VA

119 loan), the terms of the buyer's loan may require the seller or seller's agent's firm to pay compensation to the buyer's agent's firm. Buyer should

120 consult with lender. Before a seller's agent and buyer's agent agree to share compensation, they must disclose to their clients the amount and

121 other terms of the shared compensation. Compensation may be paid at the beginning of a representation, in installments, or at closing. Buyer

122 should discuss with Buyer's Agent any matter regarding compensation that Buyer does not understand.

123 (d) **Teams and Covering Agents.** For purposes of this Representation Agreement, real estate agents who Buyer's Agent assigns to work with

124 Buyer are also Buyer's exclusive agents.

Buyer Initials / / /

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BUYER REPRESENTATION AGREEMENT - EXCLUSIVE

125 **10. DISPUTE RESOLUTION:** All disputes or claims of any kind between Buyer's Agent and Buyer related to or arising under this Representation
 126 Agreement that cannot be resolved through formal or informal mediation will be submitted to final and binding arbitration under the rules of the
 127 Arbitration Service of Portland. The prevailing party in any arbitration will, at the discretion of the arbitrator, be entitled to recovery of all costs,
 128 disbursements, and attorney fees as allowed by law. However, if Buyer enters into a Real Estate Sale Agreement for the purchase of a property
 129 during the Term, the dispute resolution provisions contained in that agreement will supersede and replace this section. By consenting to this provision,
 130 the parties are agreeing disputes arising under this Representation Agreement will be heard and decided by one or more neutral arbitrators, and the
 131 parties are giving up the right to have the matter tried by a judge and jury. The right to appeal an arbitration decision is limited under Oregon law.

132 **11. ENTIRE AGREEMENT:** The terms of this Representation Agreement are the complete and final expression of the entire agreement between
 133 Buyer and Buyer's Agent and cannot be modified except in writing, signed by both Buyer and Buyer's Agent.

134 **12. ADDITIONAL PROVISIONS:** If this section is used to modify the Fee, it must be easily understood by Buyer and Buyer's Agent. *(describe)*

135 _____
 136 _____
 137 _____
 138 _____
 139 _____
 140 _____
 141 _____
 142 _____
 143 _____
 144 _____

145 DocuSigned by: Buyer Kraig Tapang Date/Time 6/10/2026 | 05:07 BST ←
 146 Print Kraig Tapang
 147 Phone Number (646)270-9892 Email Kraig.tapang@gmail.com
 148 Mailing Address 3558 SE Reed Dr, Hillsboro, OR 97123

149 Buyer _____ Date/Time _____ ←
 150 Print _____
 151 Phone Number _____ Email _____
 152 Mailing Address _____

153 Buyer _____ Date/Time _____ ←
 154 Print _____
 155 Phone Number _____ Email _____
 156 Mailing Address _____

157 Buyer _____ Date/Time _____ ←
 158 Print _____
 159 Phone Number _____ Email _____
 160 Mailing Address _____

161 Signed by: Buyer's Agent Troy D. Doty P.C. Date/Time 6/9/2026 | 22:01 BST ←
 162 Print Troy D. Doty P.C.
 163 Firm Mailing Address 224 S Hamilton St Ste 300, Portland, OR 97239

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DISCLOSED LIMITED AGENCY AGREEMENT FOR BUYERS

1 Real Estate Firm (*identify*) **Northwest Realty Source**

2 The parties to this Disclosed Limited Agency Agreement for Buyers (this "Agreement") are:

3 Buyer's Agent (*print agent or team name*) **Troy D Doty and The Doty Group**

4 Buyer's Agent's Authorized Principal Broker (*print name*) **Troy D Doty PC**

5 Buyer (*print name*) **Kraig Tapang**

6 Buyer (*print name*) _____

7 Buyer (*print name*) _____

8 Buyer (*print name*) _____

9 In this Agreement, "Buyer's Agent" means the real estate agent or licensed members of the real estate team named above who are representing the
10 Buyer. If Buyer's Agent is a real estate team, then a member of the team must provide a copy of a real estate team disclosure to Buyer, such as
11 OREF 014 - Real Estate Team Disclosure.

12 The parties to this Agreement understand Oregon law allows a single real estate agent to represent both the seller and the buyer in the same real
13 estate transaction, or multiple buyers who want to purchase the same property. A real estate agent who establishes that type of representation is a
14 "Disclosed Limited Agent." It is also understood when different agents associated with the same firm establish agency relationships with different
15 parties in the same transaction, the principal broker authorized to control and supervise the agents ("Authorized Principal Broker"), the principal broker
16 responsible for the firm ("Managing Principal Broker"), and other agents may be Disclosed Limited Agents, depending on the specific situation:

17 (a) **Agent(s) in the Same Firm Representing Different Parties.** When one or more agents associated with the same firm establish agency
18 relationships with different parties in a transaction, the firm's Managing Principal Broker is the Disclosed Limited Agent of all parties. The
19 Authorized Principal Broker of an agent involved is a Disclosed Limited Agent of the agent's client.

20 (b) **Agents Supervised by the Same Authorized Principal Broker Representing Different Parties.** If (i) more than one of a firm's agents
21 are involved in a transaction, (ii) those agents are representing different parties, and (iii) those agents are supervised by the same Authorized
22 Principal Broker, then the Authorized Principal Broker is the Disclosed Limited Agent of the agents' clients.

23 (c) **Agent(s) Supervised by the Same Authorized Principal Broker Representing More Than One Party.** If one or more of a firm's agents
24 who are supervised by the same Authorized Principal Broker establish agency relationships with more than one client in a transaction, the
25 agent(s) and the agent's Authorized Principal Broker are Disclosed Limited Agents of those clients.

26 (d) **Team Member(s) Representing More than One Party.** If one or more members of the same real estate team represent more than one
27 party in a transaction, all members of the real estate team, the team's Authorized Principal Broker, and the firm's Managing Principal Broker
28 are Disclosed Limited Agents of those parties.

29 The agents who are not Disclosed Limited Agents represent only the buyer or seller with whom they have already established an agency relationship
30 unless all parties agree otherwise in writing.

31 In consideration of the above understanding and the mutual promises and benefits exchanged here and, if applicable, in the Buyer Representation
32 Agreement, the parties agree as follows:

33 1. Buyer(s) acknowledge they have received the Initial Agency Disclosure Pamphlet required by [ORS 696.820](#) and have read and discussed with
34 Buyer's Agent the part of the pamphlet entitled "Duties and Responsibilities of an Agent Who Represents More than One Client in a Transaction". The
35 Initial Agency Disclosure Pamphlet is hereby incorporated into this Agreement by reference.

36 **Buyer(s) Initials (required)** ^{DS} / / /

37 2. Buyer(s), having discussed with Buyer's Agent the duties and responsibilities of an agent who represents more than one party to a transaction,
38 consent and agree as follows:

39 (a) Buyer's Agent, in addition to representing Buyer (*select one*), ☐ may ☒ may not represent the seller in any transaction involving Buyer;

40 (b) Buyer's Agent, in addition to representing Buyer (*select one*), ☐ may ☒ may not represent other buyers in making an offer on the same
41 property as Buyer;

Buyer Initials ^{DS} / / /

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DISCLOSED LIMITED AGENCY AGREEMENT FOR BUYERS

- 42 (c) In a transaction where the seller or another buyer seeking to acquire the same property is represented by an agent who works in the same
 43 Real Estate Firm as Buyer's Agent and who is supervised by Buyer's Agent's Authorized Principal Broker, Buyer's Agent's Authorized Principal
 44 Broker may represent both the seller, the Buyer, and any other buyer. In such a situation, Buyer's Agent will continue to represent only Buyer,
 45 and the other agent will represent only the seller or other buyer, consistent with the applicable duties and responsibilities set out in the Initial
 46 Agency Disclosure Pamphlet. If one or more members of the same real estate team represent more than one party in a transaction, all
 47 members of the real estate team, the team's Authorized Principal Broker, and the firm's Managing Principal Broker will be Disclosed Limited
 48 Agents of the parties; and
- 49 (d) In all other cases, Buyer's Agent and Buyer's Agent's Authorized Principal Broker will represent Buyer exclusively.

DocuSigned by:
 50 Buyer Kraig Tapang Date/Time 6/10/2026 | 05:07 BST ←
 51 Print Kraig Tapang

52 Buyer _____ Date/Time _____ ←
 53 Print _____

54 Buyer _____ Date/Time _____ ←
 55 Print _____

56 Buyer _____ Date/Time _____ ←
 57 Print _____

Signed by:
 58 Buyer's Agent Troy D. Doty P.C. Date/Time 6/9/2026 | 22:01 BST ←
 59 Print Troy D. Doty P.C.
 60 (On their own behalf and on the Authorized Principal Broker's behalf)

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INITIAL AGENCY DISCLOSURE PAMPHLET

[OAR 863-015-0215 \(5\)](#)

- 1 ***This pamphlet describes the legal obligations of real estate agents in Oregon. Real estate agents must provide this information to***
 2 ***you when they have sufficient contact information for you, unless they reasonably believe you already have a copy.***
- 3 ***This pamphlet is informational only. Neither the pamphlet nor its delivery to you should be interpreted as evidence of intent to***
 4 ***create an agency relationship between you and a real estate agent or a principal broker.***
- 5 ***As used in this pamphlet, "principal broker" means a real estate agent authorized to control and supervise the professional real***
 6 ***estate activity of other agents.***

Real Estate Agency Relationships

8 An "agency" relationship is a voluntary legal relationship in which a licensed real estate agent, agrees to act on behalf of a buyer or
 9 a seller (the "client") in a real estate transaction.

10 Oregon law provides for three types of agency relationships between real estate agents and their clients:

- 11 **Seller's Agent** - Represents the seller only;
 12 **Buyer's Agent** - Represents the buyer only; and
 13 **Disclosed Limited Agent** - Represents both the buyer and seller, or multiple buyers who want to purchase the same property.
 14 Representation of more than one client in the same transaction can be done only with the written permission of all clients.

15 When different agents associated with the same firm establish agency relationships with different parties in the same transaction,
 16 the principal broker authorized to control and supervise the agents ("Authorized Principal Broker"), the principal broker responsible
 17 for the firm ("Managing Principal Broker"), and other agents may be Disclosed Limited Agents, depending on the specific situation:

- 18 1. Agent(s) in the Same Firm Representing Different Parties. When one or more agents associated with the same firm establish
 19 agency relationships with different parties in a transaction, the firm's Managing Principal Broker is the Disclosed Limited
 20 Agent of all parties. The Authorized Principal Broker of an agent involved is a Disclosed Limited Agent of the agent's client.
- 21 2. Agents Supervised by the Same Authorized Principal Broker Representing Different Parties. If (a) more than one of a firm's
 22 agents are involved in a transaction, (b) those agents are representing different parties, and (c) those agents are supervised
 23 by the same Authorized Principal Broker, then the Authorized Principal Broker is the Disclosed Limited Agent of the agents'
 24 clients.
- 25 3. Agent(s) Supervised by the Same Authorized Principal Broker Representing More than One Party. If one or more of a firm's
 26 agents who are supervised by the same Authorized Principal Broker establish agency relationships with more than one
 27 client in a transaction, the agent(s) and the agent's Authorized Principal Broker are Disclosed Limited Agents of those clients.
- 28 4. Team Member(s) Representing More than One Party. If one or more members of the same real estate team represent more
 29 than one party in a transaction, all members of the real estate team, the team's Authorized Principal Broker and the firm's
 30 Managing Principal Broker are Disclosed Limited Agents of those parties.

31 The agents who are not Disclosed Limited Agents represent only the buyer or seller with whom they have already established an
 32 agency relationship unless all parties agree otherwise in writing.

33 ***The actual agency relationships between the seller, buyer and their agents in a real estate transaction must be acknowledged at the***
 34 ***time an offer to purchase is made. Please read this pamphlet carefully before entering into an agency relationship with a real estate***
 35 ***agent.***

Definition of "Confidential Information"

37 Generally, agents must not disclose confidential information about their clients. "Confidential information" is information
 38 communicated to the agent or the agent's firm by the buyer or seller of one to four residential units regarding the real property

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39 transaction, including but not limited to price, terms, financial qualifications or motivation to buy or sell. "Confidential information"
40 does not mean information that:

- 41 a. The buyer instructs the agent or the agent's principal broker to disclose about the buyer to the seller, or the seller
42 instructs the agent or the agent's principal broker to disclose about the seller to the buyer; and
- 43 b. The agent or the agent's principal broker knows or should know failure to disclose would constitute fraudulent
44 representation.

45 **Duties and Responsibilities of Seller's Agent**

46 Under a written listing agreement to sell property, an agent represents only the seller unless the seller agrees in writing to allow the
47 agent to also represent the buyer. An agent who represents only the seller owes the following affirmative duties to the seller, the other
48 parties and the other parties' agents involved in a real estate transaction:

- 49 1. To deal honestly and in good faith;
- 50 2. To present all written offers and other communications to and from the parties in a timely manner without regard to whether
51 the property is subject to a contract for sale or the buyer is already a party to a contract to purchase; and
- 52 3. To disclose material facts known by the agent and not apparent or readily ascertainable to a party;

53 A Seller's Agent owes the seller the following affirmative duties;

- 54 1. To exercise reasonable care and diligence;
- 55 2. To account in a timely manner for money and property received from or on behalf of the seller;
- 56 3. To be loyal to the seller by not taking action that is adverse or detrimental to the seller's interest in a transaction;
- 57 4. To disclose in a timely manner to the seller any conflict of interest, existing or contemplated;
- 58 5. To advise the seller to seek expert advice on matters related to the transactions that are beyond the agent's expertise;
- 59 6. To not disclose confidential information from or about the seller except under subpoena or court order, even after termination
60 of the agency relationship; and
- 61 7. Unless agreed otherwise in writing, to make a continuous, good faith effort to find a buyer for the property, except that a
62 Seller's Agent is not required to seek additional offers to purchase the property while the property is subject to a contract
63 for sale.

64 None of the above affirmative duties of an agent may be waived, except #7. The affirmative duty listed in #7 can only be waived by
65 written agreement between seller and agent.

66 Under Oregon law, a Seller's Agent may show properties owned by another seller to a prospective buyer and may list competing
67 properties for sale without breaching any affirmative duty to the seller.

68 Unless agreed to in writing, an agent has no duty to investigate matters that are outside the scope of the agent's expertise, including
69 but not limited to investigation of the condition of property, the legal status of the title or the seller's past conformance with law.

70 **Duties and Responsibilities of Buyer's Agent**

71 An agent, other than the Seller's Agent, may agree to act as the Buyer's Agent only. The Buyer's Agent is not representing the seller,
72 even if the Buyer's Agent is receiving compensation for services rendered, either in full or in part, from the seller or through the
73 Seller's Agent.

74 An agent who represents only the buyer owes the following affirmative duties to the buyer, the other parties and the other parties'
75 agents involved in a real estate transaction:

- 76 1. To deal honestly and in good faith;
- 77 2. To present all written offers and other communications to and from the parties in a timely manner without regard to whether
78 the property is subject to a contract for sale or the buyer is already a party to a contract to purchase; and
- 79 3. To disclose material facts known by the agent and not apparent or readily ascertainable to a party.

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80 A Buyer's Agent owes the buyer the following affirmative duties:

- 81 1. To exercise reasonable care and diligence;
- 82 2. To account in a timely manner for money and property received from or on behalf of the buyer;
- 83 3. To be loyal to the buyer by not taking action that is adverse or detrimental to the buyer's interest in a transaction;
- 84 4. To disclose in a timely manner to the buyer any conflict of interest, existing or contemplated;
- 85 5. To advise the buyer to seek expert advice on matters related to the transaction that are beyond the agent's expertise;
- 86 6. To not disclose confidential information from or about the buyer except under subpoena or court order, even after termination
- 87 of the agency relationship; and
- 88 7. Unless agreed otherwise in writing, to make a continuous, good faith effort to find property for the buyer, except that a
- 89 buyer's agent is not required to seek additional properties for the buyer while the buyer is subject to a contract for purchase.

90 None of these affirmative duties of an agent may be waived, except #7. The affirmative duty listed in #7 can only be waived by written
91 agreement between buyer and agent.

92 Under Oregon law, a Buyer's Agent may show properties in which the buyer is interested to other prospective buyers without
93 breaching an affirmative duty to the buyer.

94 Unless agreed to in writing, an agent has no duty to investigate matters that are outside the scope of the agent's expertise, including
95 but not limited to investigation of the condition of property, the legal status of the title or the seller's past conformance with law.

96 **Duties and Responsibilities of an Agent**
97 **Who Represents More than One Client in a Transaction**

98 One agent may represent both the seller and the buyer in the same transaction, or multiple buyers who want to purchase the same
99 property, only under a written "Disclosed Limited Agency Agreement" signed by the seller and buyer(s).

100 Disclosed Limited Agents owe the following duties to their clients:

- 101 1. To the seller, the duties listed above for a seller's agent;
- 102 2. To the buyer, the duties listed above for a buyer's agent; and
- 103 3. To both buyer and seller, except with express written permission of the respective person, the duty not to disclose to the
104 other person:
 - 105 a. That the seller will accept a price lower or terms less favorable than the listing price or terms;
 - 106 b. That the buyer will pay a price greater or terms more favorable than the offering price or terms; and
 - 107 c. Confidential information as defined above.

108 Unless agreed to in writing, an agent has no duty to investigate matters that are outside the scope of the agent's expertise.

109 The principal broker and the real estate agents representing either seller or buyer shall owe the following duties to the seller and
110 buyer:

- 111 1. To disclose a conflict of interest in writing to all parties;
- 112 2. To take no action that is adverse or detrimental to either party's interest in the transaction; and
- 113 3. To obey the lawful instructions of both parties.

114 No matter who they represent, an agent must disclose information the agent knows or should know that failure to disclose would
115 constitute fraudulent misrepresentation.

116 ***You are encouraged to discuss the above information with the agent delivering this pamphlet to you. If you intend for that***
117 ***agent, or any other Oregon real estate agent, to represent you as a Seller's Agent, Buyer's Agent, or Disclosed Limited***
118 ***Agent, you should have a specific discussion with the agent about the nature and scope of the agency relationship. Whether***
119 ***you are a buyer or seller, you cannot make an agent your agent without the agent's knowledge and consent, and an agent***
120 ***cannot make you their client without your knowledge and consent.***

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